

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Nataly Cabrera	Team: Team # 3	CCRB Case #: 200408793	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 09/07/2004 6:15 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 3/7/2006	Precinct: 94		
Date/Time CV Reported Tue, 09/07/2004 6:31 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 09/07/2004 6:31 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 William Dawson	05336	900817	CMD 580
2. SGT Raymond Tomins	05336	902480	CMD 580

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Eddie Ferguson	05350	894638	CMD 580

Officer(s)	Allegation	Investigator Recommendation
A . DT3 William Dawson	Abuse: Dt. William Dawson entered and searched § 87(2)(b) on August 10, 2004 and September 7, 2004.	A . Exonerated
B . DT3 William Dawson	Abuse: Dt. William Dawson damaged § 87(2)(b) s property on August 10, 2004.	B . Unfounded
C . SGT Raymond Tomins	Abuse: Sgt. Raymond Tomins entered and searched § 87(2)(b) on September 7, 2004.	C . Exonerated
D . SGT Raymond Tomins	Abuse: Sgt. Raymond Tomins threatened to arrest § 87(2)(b) on September 7, 2004.	D . Exonerated

Synopsis

§ 87(2)(b) reported this case to the CCRB by phone on September 7, 2004. The complaint in this case is derived from two incidents that occurred at § 87(2)(b) in Brooklyn. The first incident occurred on August 10, 2004 at approximately 6:00 AM. § 87(2)(b) stated that on this date police officers came to his apartment looking for his brother; § 87(2)(b) § 87(2)(b) alleged that his home was broken into and searched, and that his bedroom door was damaged (Allegations A and B). The second incident occurred on September 7, 2004 at approximately 6:00 AM. § 87(2)(b) stated that he and his mother, § 87(2)(b) were home when two officers arrived again looking for § 87(2)(b). The officers entered his home and one of the officers threatened to arrest him (Allegations C and D). § 87(2)(b) and § 87(2)(b) stated that the officers had an arrest warrant for § 87(2)(b) on both occasions.

§ 87(2)(b) video recorded both incidents in this case. The recordings identify Detective William Dawson and Detective Eddie Ferguson as the officers in § 87(2)(b)'s home in the first incident, and Dt. Dawson and Sgt. Tomins as the officers in § 87(2)(b)'s home in the second incident. § 87(2)(g)

§ 87(2)(b) it is recommended that Allegations A and C be exonerated. § 87(2)(g)

§ 87(2)(b) it is recommended that Allegation B be unfounded. § 87(2)(g)

§ 87(2)(b) it is recommended that Allegation D be exonerated.

Summary of Complaint

§ 87(2)(b) is a § 87(2)(b)-year-old White male. § 87(2)(b) was interviewed at the CCRB on October 19, 2004 {Encl. 7-7C}. He testified about two related incidents. The first incident occurred on August 10, 2004 and the second incident occurred on September 7, 2004. Both incidents occurred at 6:00 AM at his home at § 87(2)(b) in Brooklyn. § 87(2)(b) stated that at the time and place of occurrence the first time, he was sleeping in his bedroom when he heard a crack on his bedroom door. He also heard yelling in his apartment; frightened that it might be a burglary, he called 911 and his mother, who was not home at the time. § 87(2)(b) noticed a marked police vehicle outside of his window and he then opened his bedroom door. Upon opening his door, he encountered six officers—four in uniform and two in plain-clothes. One of the officers in uniform told § 87(2)(b) that they were looking for § 87(2)(b) § 87(2)(b)'s brother. § 87(2)(b) told them that § 87(2)(b) had moved out two months ago and that he no longer lived there. The two officers in plain-clothes then made their way into his bedroom and then to his mother's, § 87(2)(b)'s, bedroom, which is adjacent to § 87(2)(b)'s room. The officers opened closet doors and looked in the clothes in both rooms, but they did not search through anything in the closet. Subsequently, the officers proceeded to the kitchen and bathroom, but he did not see them look through anything in the kitchen or bathroom, and nothing was displaced there. He explained that the officers only looked in places big enough to hide a person. At one point, a Black officer in uniform showed him a sheet, which was supposed to be an arrest warrant for § 87(2)(b) § 87(2)(b) said that there was no damage to the front door to the apartment, but that his wooden bedroom door was cracked. § 87(2)(b) stated that his landlord was at the scene and that one of the officers in plain clothes told her that he would need her phone number. § 87(2)(b) video recorded the incident. Following the incident, he called IAB to place a complaint. The next day, IAB reported to his home and showed him nine warrants for Lukas' arrest. The IAB investigators told him that they would speak to their commanding officer about the incident.

On September 7, 2004, § 87(2)(b) awakened § 87(2)(b) at approximately 6:15 AM. She told him that police officers were in the apartment, at which time he grabbed his video recorder and stepped out of his bedroom. § 87(2)(b) saw one of the officers that had been in his apartment in the previous incident. This officer was in the kitchen. In the front doorway, there was an officer who later identified himself to § 87(2)(b) as a sergeant. As § 87(2)(b) attempted to make his way into the kitchen, the sergeant stood in § 87(2)(b)'s path and told him, "You touch me again and I'm gonna lock you up." The sergeant told him that he would come to the apartment as many times as he wanted until they found § 87(2)(b) § 87(2)(b) said that he had not touched the sergeant, but had merely attempted to pass by him to get to the

kitchen. § 87(2)(b) was frightened at the sergeant's remark and he called 911 again for IAB. Subsequently, two officers in a marked patrol car arrived and rang the doorbell. § 87(2)(b) spoke to them and they said that they would speak to someone in the department. § 87(2)(b) explained that at one point, he specifically asked for a search warrant and one of the officers showed him a document with a faded picture of § 87(2)(b). He taped this second incident as well.

Results of Investigation

Civilians Not Interviewed

In the phone conversation with § 87(2)(b)'s mother, she stated that on September 7, 2004, she was home when the officers arrived. She opened the door for them and allowed them into the apartment. She said that the officers had an arrest warrant for her son § 87(2)(b). After § 87(2)(b)'s in-person interview, he provided the CCRB with a video recording of both incidents in question, and it was therefore not necessary to interview § 87(2)(b).

Officer Interviews

Detective William Dawson was interviewed on December 16, 2005 at the CCRB {Encl. 9-9B}

PO Dawson stated that on August 10, 2004, he was working on a warrant investigation with Dt. Edward Ferguson. Dt. Dawson had approximately nine warrants for § 87(2)(b) and he reported to the location listed on the warrants at approximately 6:10 AM in search of this individual. Upon their arrival, they knocked on the door and someone looked through the peephole, at which time Dt. Dawson said, "Can someone open the door?" The officers then heard running back and forth behind the door, at which time Dt. Dawson went to the back of the house, where he looked through the back window and saw a tall male running inside. He then yelled to the male, "Hey, hey, open the door" and the male ran away. At this time, a lady in one of the apartments was looking out her window and said, "What's the matter? I'm the landlord, I'll come out." Dt. Dawson then went back to the front of the house to get Dt. Ferguson and tell him that he thought the defendant was attempting to jump out the window in the back. The landlord then came out with the key to the back gate and Dt. Dawson showed her § 87(2)(b) photo. She recognized the male in the photo and said, "He always jumps out the window when the police come." The officers believed that § 87(2)(b) was still inside the apartment and they returned to the back of the house. The landlord opened the back gate and provided a chair for Dt. Dawson so that he could more easily look through the window in the back. Upon looking through the window, he saw someone running in the hallway and he yelled to this person, "Hey, § 87(2)(b) open the door." Immediately following, he heard a door slam inside. Dt. Dawson then entered the apartment through the kitchen window and opened the front door for Dt. Ferguson. Inside the apartment, there was a locked bedroom door, and they believed that § 87(2)(b) was hidden in that bedroom. They then knocked on the door with their hands only, at which time an individual who identified himself as § 87(2)(b) brother opened the door and came out with a video camera. He told the officers, "I thought you were burglars. What are you doing here? Get out of here." The bedroom door was either metal or wooden and the officers did not damage the door. As they looked through the apartment, the individual followed them with a camera. Dt. Dawson showed this individual § 87(2)(b) nine warrants and the individual said, "this means nothing." The search was conducted in a couple of bedrooms. In one of the bedrooms, he looked through clothes that were hanging from the wall. He did not look through drawers or any other small place, only in places where § 87(2)(b) could have been hidden. Upon leaving the apartment, § 87(2)(b) brother told the officers that they had damaged the front door as he assumed that they had entered the apartment through the front entrance. At this time Sgt. Spiers reported to the scene and Dt. Dawson asked him to look at the door for damages, but there were no damages. Before leaving the scene, the landlord provided Dt. Dawson her name, Hanna Roskowitz, and her number, and told the officers to give her a call if they needed additional information. She said that § 87(2)(b) and his family had given her problems for some time and that he would show up to the apartment at night. In this incident, Dt. Dawson displayed his shield around his neck.

PO Dawson's memo book entry for September 7, 2004 indicated the following: § 87(2)(b) s/w (search warrant) subj. mother was cooperative- brother of subject, very irate and uncooperative. States subject doesn't live at location anymore. Dt. Dawson stated that on this date he was working with Sergeant Raymond Tomins. Dt. Dawson had approximately nine bench warrants for § 87(2)(b) and he reported

to the place of occurrence at 6:10 AM again looking for him. The officers knocked on the door and a woman opened the door, at which time they showed her the bench warrants and she said, "That's my son, you can come in and look around." At this time, the same male individual from the first incident, § 87(2)(b) brother, came out of a bedroom, again with a video camera, and yelled at the officers, "Get out of here! I've got a complaint against you at IAB." He focused the camera on the officers' face and shields. § 87(2)(b) mother led the officers through the bedrooms so that they could verify that § 87(2)(b) was not there. Subsequently, Dt. Dawson wrote down his name and number and provided this to § 87(2)(b) brother and told him to tell § 87(2)(b) to turn himself in. Dt. Dawson did not recall a threat of arrest being made against § 87(2)(b) brother, but he said that he stood in their way with his camera as they searched the apartment for § 87(2)(b).

Detective Edward Ferguson was interviewed on December 16, 2004 at the CCRB {Encl. 11-11A}

Dt. Ferguson testified about an incident that occurred on August 10, 2004. He was on vacation from September 5, 2004 to September 9, 2004 and therefore was not present during the second incident in this case, which occurred on September 7, 2004. He stated that on August 10, 2004, at approximately 6:10 AM he and Dt. Dawson reported to § 87(2)(b) in Brooklyn, on Dt. Dawson's warrant investigation. Dt. Ferguson stayed in the front of the house, while Dt. Dawson retrieved to the back of the house. Shortly afterward, Dt. Dawson came back to the front of the house and told him that he might have seen § 87(2)(b) in the house through the back window, and that he wanted to make sure that he had not escaped through the front door. Dt. Dawson then went to the back of the house where he climbed in through the back window and then opened the front door for him. Inside the apartment, they suspected § 87(2)(b) hidden in one of the bedrooms, and they banged on the bedroom's wooden door with their hands. Subsequently, a male with a video camera opened the door and came out "yelling and screaming." He identified himself as § 87(2)(b) brother and said that he was taping them. Dt. Ferguson said there was no damage on the bedroom door on which they knocked, and § 87(2)(b) did not mention any damage to his property. § 87(2)(b) brother followed the officers around the house with his video camera as they looked for § 87(2)(b). The officers looked in every bedroom in the apartment, which altogether were three or four. If there was a large object, they might have looked behind it, but they did not open cabinets or small compartments. They only looked in big spaces where § 87(2)(b) could have been hidden. In one of the bedrooms, there was a rack of clothes on the wall, which they pushed aside to look in between. They also looked in the kitchen and bathroom. The search lasted for approximately ten to fifteen minutes. § 87(2)(b) brother apparently called the police, as a uniformed police officer arrived at the scene as they were leaving. In this incident, Dt. Ferguson displayed his shield around his neck.

Sergeant Raymond Tomins was interviewed on December 16, 2005 at the CCRB {Encl. 13-13A}

Sgt. Tomin's memo book entry indicated the following: 09/07/04 Tuesday 0425x1300 0520 Det. Dawson 0610 84 § 87(2)(b) Re: § 87(2)(b), § 87(2)(b) + 8 very uncooperative mother and son states we couldn't come to location due to the fact that they made a complaint against Det. Dawson. The mother of defendant opened the door and allowed entry then became irate. Son began to videotape and was also combative. 911 was called 094: Spiers responded. Left scene without further incident.

Sgt. Tomins stated that on September 7, 2004 at § 87(2)(b) in Brooklyn, at approximately 6:00 AM, he and Dt. Dawson reported to the location with approximately eight warrants for an individual at that address. Upon their arrival, they knocked on the front door and a lady, who later identified herself as the defendant's mother, opened the door. The officers identified themselves and showed her the warrants. She told them that her son, § 87(2)(b) was not there, but that they could come in and look around. The officers looked in the foyer and then proceeded to the bedrooms where they encountered a male individual with a video camera. The officers did not look in small places such as cabinets; they only looked in places big enough to hide a person. As the officers walked down the hallway in the apartment, the individual with the camera came from behind and grabbed Sgt. Tomin's shoulder, at which time Sgt. Tomins told him, "If you touch me again, I'm gonna arrest you. You can't touch me." Sgt. Tomins said that there was no damage to property and he did not recall anyone mentioning any property damage at the scene. As the officers were leaving, a sergeant, whose name he could not remember, arrived at the scene. Sgt. Tomins believed that the male with the camera had called the police.

Police Documents

Bench Warrants: Eight bench warrants for § 87(2)(b) issued on § 87(2)(b) by the Criminal Court of the City of New York. All of the warrants have the address of § 87(2)(b) Brooklyn, New York.

911 Call and Radio Run: § 87(2)(b) called on September 7, 2004 to report that detectives were harassing him at his home, § 87(2)(b) in Brooklyn. He said that it was the second time the officers reported to his home and that he had previously complained about them to IAB. The dispatcher contacted a sergeant, who said the incident had been handled by the midnight sergeant and that the incident was a 10-91 (non-crime corrected).

Officer Identification

§ 87(2)(b)'s video recordings clearly identify Dt. Dawson, Dt. Ferguson, and Sgt. Tomins as the officers involved in this case. § 87(2)(b) focused in on the officers and their shields. In the in-person interviews, the officers all verified their involvement in the incidents in questions.

Complainant's CCRB History

§ 87(2)(b) has no previous complaints at the CCRB.

Complainant's Convictions

§ 87(2)(b) does not have any criminal convictions.

Officer CCRB History

None of the officers in this case have substantiated cases at the CCRB.

Conclusions and Recommendations

Undisputed Facts

§ 87(2)(b) video recorded both incidents. As such, it is undisputed that on August 10, 2004 at approximately 6:00 AM, Dt. Dawson and Dt. Ferguson arrived at § 87(2)(b) in Brooklyn with several bench warrants for § 87(2)(b). The officers identified themselves through their shields and showed § 87(2)(b) bench warrants with § 87(2)(b) photograph. The officers only looked in places big enough to hide a person. Specifically, they looked in between clothes in several closets and under the clothes with a flashlight. It is also undisputed that on September 7, 2004, Dt. Dawson and Sgt. Tomins arrived at the same location with several bench warrants for the same person, § 87(2)(b). The officers did not search in places where a person could not have been hidden. It is undisputed that in this incident, Sgt. Tomins told § 87(2)(b) not to touch him again or he would be arrested. § 87(2)(b)'s mother, § 87(2)(b) asked the sergeant for his name, which he provided. § 87(2)(b) asked the officers for warrants and Dt. Dawson showed him and § 87(2)(b) all nine warrants with § 87(2)(b) photograph.

Credibility

§ 87(2)(g)

Allegation A. Abuse of Authority: Detective William Dawson entered and searched § 87(2)(b) in Brooklyn, NY 11222 on August 10, 2004 and September 7, 2004

Allegation C. Abuse of Authority: Sergeant Raymond Tomins entered and searched § 87(2)(b) in Brooklyn, NY 11222 on September 7, 2004

§ 87(2)(b) stated officers entered and searched his apartment on both August 10, 2004 and September 7, 2004. § 87(2)(b) video recorded both incidents. The tapings, however, did not record either entry. Given that the officers were working on Dt. Dawson's warrants, allegation A is pleaded only against Dt. Dawson.

Kamin's New York Search and Seizure, Pg. 217 section D, states that a bench warrant "is tantamount to an arrest warrant." This section further indicates that, "when executing an arrest warrant an officer may

enter any premises, including the defendant's dwelling, in which he reasonably believes the defendant is present...before entering any dwelling, the officer must make a reasonable effort to give notice of his authority to an occupant of the dwelling...if after the authority he is not admitted, he may enter the premises by a breaking, if necessary." {Encl. 1-1A}. Dt. Dawson stated that upon their arrival on August 10, 2004, they knocked on the front door, at which time Dt. Dawson saw someone look through the peephole and also heard running back and forth in the apartment. The landlord of the house then told Dt. Dawson that § 87(2)(b) always jumped out the back kitchen window when police arrived looking for him. The landlord opened the back gate for the officers and Dt. Dawson then went to the back of the house where he saw a tall male, whom he believed to be § 87(2)(b) running back and forth inside the apartment. He informed his partner, Dt. Ferguson, about this and told him to keep watch of the front door, as § 87(2)(b) could exit the apartment through there. Dt. Dawson then stepped on a chair provided by § 87(2)(b) and climbed into the apartment through the kitchen window and opened the front door for Dt. Ferguson. Upon their entrance they knocked on § 87(2)(b)'s bedroom door and § 87(2)(b) opened his door and began video recording the incident. The video recordings show that the officers did not look in places where § 87(2)(b) could not have been hidden. They looked in between clothes in closets with a flashlight. The recordings also show that the officers had several bench warrants for § 87(2)(b)'s brother, § 87(2)(b) and they showed these to § 87(2)(b) § 87(2)(g) [REDACTED]

it is therefore recommended that allegation A be exonerated.

On September 7, 2005, Dt. Dawson arrived at the same location with Sgt. Tomins again looking for the same person, § 87(2)(b). On this occasion § 87(2)(b) § 87(2)(b)'s mother, allowed them in the apartment. All of the parties involved in this second incident agreed that § 87(2)(b) opened the door. The video recording shows that the officers only looked in places big enough to hide a person. The video also shows that on this occasion the officers again had several bench warrants, all of which were showed to § 87(2)(b) and § 87(2)(b) § 87(2)(g) [REDACTED]

it is recommended that Allegation C be also exonerated.

Allegation B. Abuse of Authority: Detective William Dawson damaged § 87(2)(b)'s property on August 10, 2004

§ 87(2)(b) stated that on August 10, 2004, officers broke and damaged his front bedroom door upon entering his home. § 87(2)(g) [REDACTED] Dt. Dawson and Dt. Ferguson said they knocked on the bedroom door with their hands without causing any damage. § 87(2)(g) § 87(2)(b) opened the door from inside. The video verifies that § 87(2)(b) opened his bedroom door for the officers. § 87(2)(g) [REDACTED] it is recommended that Allegation B be unfounded.

Allegation D: Abuse of Authority: Sergeant Raymond Tomins threatened to arrest § 87(2)(b) on September 7, 2004

§ 87(2)(b) stated that on September 7, 2004, officers again entered his house in search of his brother, § 87(2)(b). During the incident, § 87(2)(b) tried to get by to the kitchen, and touched a sergeant who stood in the way. § 87(2)(b) stated that he brushed against a sergeant while trying to get by, and the sergeant threatened to arrest him. Sgt. Tomins said that § 87(2)(b) touched his shoulder while trying to get past him and he indeed threatened him with arrest if he touched him again. The video further verifies the threat of arrest by Sgt. Tomins. The Penal Law and Criminal Procedure Law, clause 195.05, states, "A

person is guilty of obstructing governmental administration when he intentionally obstructs, impairs or perverts the administration of law or other governmental function or prevents or attempts to prevent a public servant from performing an official function, by means of intimidation, physical force or interference...” {Encl. 1B}. § 87(2)(g)

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] it is recommended that this allegation be exonerated.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: